W013434-091426 - California Public Records Request

Message History (5)

On 10/15/2026 12:38:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013434-091426
Body:
RE: PUBLIC RECORDS REQUEST of September 14, 2026, **Reference # W013434-091426**

Dear Brian C,

The City received the following records request from you on September 14, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157). Each item is limited to records created on or before the date of this request.

As you are aware, SMPD SOP 205 provides, in its section titled "NCRIC Astrometrics Platform," that "[t]he Support Services Captain, or their designee, shall conduct audits of end-users usage of the NCRIC platform on a quarterly basis," and that "[o]ur Department can obtain such data for the purposes of an audit directly from the NCRIC." That provision appears in identical terms in the February 10, 2021 revision of SOP 205 produced in W012198-022326 and in the November 10, 2025 revision produced in W012159-021226. In response to W012461-040226 and again in response to W012666-050426, the Department stated that there were no responsive records for end-user audit records concerning the NCRIC platform under SOP 205 § 205.5.1. This request therefore does not seek those audits. It seeks the underlying access data and the records of what has become of San Mateo Police Department ALPR data held on the NCRIC Astrometrics platform.

As you are further aware, the Department's own Flock ALPR training materials, dated February 8, 2021 and produced in W012672-050426, state that "[d]ata is held for 30 days, then automatically deleted and purged from Flock's system," and that "[d]ata from Flock are uploaded to NCRIC – Astrometrics and held for 365 days." The infrastructure code since published by NCRIC's vendor confirms that mechanism: an automated process retrieved each participating agency's prior day of Flock license plate reads on a daily schedule and wrote those reads into a separate NCRIC-operated database, with associated plate images stored in a separate cloud storage bucket. That stored copy is distinct from the Flock platform, is retained far beyond Flock's 30-day period, and access to it is not reflected in Flock's audit records. This request concerns that NCRIC-held copy of San Mateo Police Department data and is not limited to activity visible through the Flock platform.

As you are further aware, the Department's Flock Safety transparency portal (https://transparency.flocksafety.com/san-mateo-ca-pd) states, under "Access Policy," that "[a]ll system access requires a valid reason and is stored indefinitely." That statement describes the record of who accessed the system and why, distinct from the underlying plate-read data subject to the 30- and 365-day retention periods described above, and represents that access record as retained without a time limit.

As you are further aware, the vendor that has operated the NCRIC Astrometrics platform publicized its role providing that platform to NCRIC in a November 17, 2022 press release, in which NCRIC's Assistant Deputy Director for Information Technology & Cyber Security was quoted endorsing the platform. That release states

that "[c]lient administrators also have access to real-time data ingestion and usage logs," that the platform "maintains all usage records," and that it "alerts agency stakeholders of any data breach." The usage records and access data this request seeks were therefore represented, by the platform's operating vendor, as existing and as available to client administrators.

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Scope of records. SMPD's executed Memorandum of Understanding with NCRIC, dated August 2014 and produced in W012376-032026, provides at Section 6 that "Member Agencies remain the official custodian of all information contributed to the NCRIC-DSP," that Public Records Act requests "will be referred to the Member Agency that is the owner of the requested data," and that such Member Agency "will be responsible for responding to the request." Records held by NCRIC on SMPD's behalf as contributed-data custodian, and records SMPD is entitled to obtain under SOP 205, are writings "prepared, owned, used, or retained" by SMPD within the meaning of Gov. Code § 7920.530 and are within the scope of this request regardless of which server they reside on.

Records requested:

1. Any access, usage, or audit data concerning the NCRIC Astrometrics platform obtained by the Department from NCRIC or its vendor at any time and for any purpose, whether or not obtained in connection with an audit — including any export, report, log, or file reflecting end-user sign-on information, date and time of access, search terms or case numbers entered, or the connection between searched data and the stated justification.

2. Any request, correspondence, or service ticket by which the Department asked NCRIC, or NCRIC's vendor, for access data, audit data, or usage reports concerning the NCRIC Astrometrics platform.

3. Records concerning the disposition of San Mateo Police Department ALPR data upon the termination, wind-down, or cessation of operations of the vendor that operated the NCRIC Astrometrics platform — including any certificate of destruction, deletion confirmation, data-return record, transition or migration record, or correspondence concerning what became of that data.

4. Any notice, advisory, correspondence, or communication the Department received from NCRIC, or from the vendor that operated the NCRIC Astrometrics platform, concerning (a) the wind-down, cessation of operations, or change in status of that vendor; (b) the migration, transfer, deletion, or continued retention of San Mateo Police Department ALPR data held on the platform; or (c) the public disclosure of the platform's infrastructure code, configuration, or audit records. This item includes any record showing that no such notice was received, to the extent one exists.

If no records are located for any individual item, please respond to that item separately and continue processing the remaining items.

Brian

As you are aware, batches of responsive records have been released on a rolling basis to show a good faith and diligent effort to complete your request. A final batch of records, as well as an updated response letter, have been released and made available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 10/8/2026 3:20:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013434-091426
Body:
RE: PUBLIC RECORDS REQUEST of September 14, 2026, **Reference # W013434-091426**

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Brian

Due to the large number of records which are associated with this request, the City will send you records on a rolling production basis. An initial batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 08/15/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 9/24/2026 3:37:02 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W013434-091426
Body:
RE: PUBLIC RECORDS REQUEST of September 14, 2026, **Reference # W013434-091426**

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Brian

Pursuant to Government Code § 7922.535(c), the City requires a 14-day extension of time to respond to your request due to the volume of potentially responsive email correspondence that must be identified, collected, and reviewed.
This is in accordance with Government Code § 7922.535(c). Accordingly, we will provide a determination to your request with updates no later than October 8, 2026.

If you have any questions, please reply to this message.

Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
(650) 522-7709

On 9/14/2026 12:24:26 PM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 9/14/2026 and given the reference number **W013434-091426** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.**

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Brian

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.

On 9/14/2026 12:24:24 PM, Brian C wrote:

Request Created on Public Portal